

12	Davis v. Pfaffly 2022-01294841 Demurrer to Answer Motion to Compel Answers to Form Interrogatories Motion to Compel Further Responses to Form Interrogatories Motion to compel further responses to special interrogatories Motion to compel production Motion to Compel Production Motion to compel response to requests for admissions Motion to compel response to request for admissions CMC	Motion 1: Demurrer to Answer Plaintiff Jaimie Davis' demurrer to Defendants' verified answer to the second amended complaint is OVERRULED. When a defendant bears the burden of proving a defense at trial, it is a "new matter" or "affirmative defense" that must be specially pleaded in the answer. (See <i>California Academy of Sciences v. County of Fresno</i> (1987) 192 Cal.App.3d 1436, 1442 [failure to plead equitable defenses waived those defenses].) A defendant raising such new matters must allege ultimate facts sufficient to prove the defense with the same level of detail that a plaintiff is required to allege ultimate facts to support a cause of action in a complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384; 5 Witkin, Cal. Proc. 5th (2008) Pleading, § 1082, p. 515.) "Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. [Citation.]" "There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer." (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 733.) Here, Plaintiff's verified second amended complaint alleges causes of action for negligence, trespass, nuisance, willful and malicious conduct, and strict liability for fire suppression. The answer filed by Defendants adequately alleges affirmative defenses and responds to Plaintiff's allegations in compliance with the Code of Civil Procedure. Therefore, the demurrer is overruled. Motions 2-9: Motions to Compel Further Responses Plaintiff Jaimie Davis' Amended Motions to Compel Further Responses are DENIED. Defendants' request for monetary sanctions is GRANTED. Plaintiff moves to compel Defendants to Larry Gene Pfaffly and Carol A Pfaffly to serve further responses without objection to Plaintiff's Form Interrogatories, Set Two; Special Interrogatories, Set Two; Requests for Production, Set Two; and Requests for Admissions, Set Two ("Discovery"). Plaintiff also moves for an award of
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	monetary sanctions against Defendants and their counsel in the amount of \$1,610 for each motion, totaling \$12,880 for all eight motions. In their oppositions, Defendants request monetary sanctions against Plaintiff in the amount of \$225 per opposition, totaling \$1,800 for the eight oppositions. Plaintiff's motions are untimely. A motion to compel further responses must be filed within 45 days after service of the verified responses, or "any specific later date to which the propounding and responding parties have agreed in writing" (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c); 2033.290, subd. (c).) The 45-day deadline is extended if responses were served by mail, overnight delivery, fax, or electronically. (Code Civ. Proc., §§ 1013, 1010.6, subd. (a)(3)(B), 2016.050.) The propounding party waives the right to compel further responses if the motion is not timely filed. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c); 2033.290, subd. (c); see <i>Vidal Sassoon, Inc. v. Sup.Ct.</i>(Halpern) (1983) 147 Cal.App.3d 681, 683 [holding the deadlines for motions to compel further responses are "mandatory and the court may not entertain a belated motion to compel."].) Monetary sanctions must be imposed against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further responses unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).) On 12/31/25, Defendants served responses to the Discovery by mail that consisted of objections only. On 1/19/26, Defendants agreed to serve further responses without objections by 2/12/26. Despite this agreement, on 2/11/26, Plaintiff filed eight motions to compel further responses. On 2/12/26, as promised, Defendants served further verified responses without objections by mail thereby rendering the original motions moot. On 3/20/26, Defendants served second further verified responses without objections by mail. Accordingly, the deadline to file motions directed at the 2/12 and 3/20 further responses was 4/3/26 and 5/10/26, respectively. Plaintiff did not file the Amended Motions until 5/22/26. Plaintiff's attempt to relate the Amended Motions back to the original motions is unavailing. The original motions
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		challenged Defendant's original 12/31 responses and were filed before the 2/12 and 3/20 responses existed. Plaintiff cannot avoid the statutory deadline by amending the original motions. The motions are denied. Based on the foregoing, Plaintiff did not act with substantial justification in making these motions. Plaintiff created this situation by filing the original motions the day before the date Defendants agreed to serve further responses. There was no need to do so. Plaintiff's deadline to file a motion directed at the 12/31 responses did not expire until 2/19/26. Had Plaintiff waited just one day, there would have been no need to file the original motions. Plaintiff then refused to withdraw the original motions after Defendants served further responses without objections twice. He then failed to serve timely motions directed at the further responses. Even after the court gave Plaintiff another opportunity to resolve the motions informally, Plaintiff still did not withdraw the untimely motions. Defendants' request for sanctions therefore is granted. Plaintiff is ordered to pay monetary sanctions to Defendants in the amount of \$1,800 within 30 days.
13	McCoy v. McCoy 2024-01436961 Motion to for summary judgment/adjudication	Cross-Defendant Danny J. McCoy's motion for summary judgment in his favor and against Cross-Complainant Theresa E. McCoy as to the cross-complaint filed by Theresa E. McCoy is CONTINUED to November 9, 2026. There are several procedural issues with Cross-Complainant's Opposition. First, Cross-Complainant's opposition to the Motion is untimely. (Code Civ. Proc. §437c, subd. (b)(2) ["An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise."].) Second, Cross-Complainant has failed to submit a Separate Statement in Opposition to the Motion. (Code Civ. Proc. §437c, subd. (b)(3) ["The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed."]; <i>Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.</i> (2005) 133 Cal.App.4th 1197, 1211 ["[W]e do not question the right of a trial court to refuse to proceed with a summary judgment motion in the absence of an adequate separate statement from the opposing party...But the proper